

24CHCV03732 24CHCV03732

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Case Number: 24CHCV03732 Hearing Date: July 14, 2026 Dept: F49

Dept. F49

Date: 7/14/26

Case Name: C.S.,a minor by and through her Guardian ad
Litem, Ofelia Garay, vs. Los Angeles Unified School District; Eva Lopez
Duarte; and Does 1-50

Case No. 24CHCV03732

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 14, 2026

MOTION TO STRIKE

Los Angeles Superior
Court Case No. 24CHCV03732

Motion filed: 2/23/26

MOVING PARTY: Defendant Los Angeles Unified School
District

RESPONDING PARTY: Plaintiff C.S.

NOTICE: OK

RELIEF REQUESTED: An order from this Court striking portions of Plaintiffs' Second Amended Complaint.

TENTATIVE RULING: The Motion to Strike is GRANTED IN PART, without leave to amend.

I.

BACKGROUND

This action arises from the alleged sexual assault of Plaintiff by a teacher's assistant while she was enrolled at Hillary T. Broadus Early Education Center. On October 11, 2024, Plaintiff C.S. ("Plaintiff"), a minor by and through her Guardian ad Litem, Ofelia Garay, initiated this action. On January 20, 2026, Plaintiff filed the operative Second Amended Complaint ("SAC") against Defendants Los Angeles Unified School District ("LAUSD"), Eva Lopez Duarte, and Does 1 through 50, alleging the following causes of action: (1) negligent hiring, supervision, training and retention (Government Code sections 815.2, 815.6); (2) sexual assault/sexual battery; (3) and intentional infliction of emotional distress.

On February 23, 2026, LAUSD filed the instant Motion to Strike (the "Motion").

On

June 30, 2026, Plaintiff filed an Opposition.

On

July 7, 2026, LAUSD filed a Reply.

II.

ANALYSIS

Upon motion by a party, a court may "strike any irrelevant, false, or improper matter inserted in any pleading ... [or] all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc.,

§ 436, subds. (a), (b).) A motion to strike may be directed against a whole pleading or any part of it. (§ 435, subd. (b)(1).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (§ 437.)

“In passing on the correctness of a ruling on a motion to strike, judges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth. [Citations.] In ruling on a motion to strike, courts do not read allegations in isolation. [Citation.]” (Clauson v. Superior Court (1998) 67 Cal.App.4th 1253, 1255.)

A. Meet and Confer

Before filing a motion to strike, “the moving party shall meet and confer in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5, subd. (a).) “A determination by the court that the meet and confer process was insufficient shall not be grounds to grant or deny the motion to strike.” (Id., § 435.5, subd. (a)(4).)

LAUSD’s counsel attests to meeting and conferring with Plaintiff’s counsel via telephone regarding the issues to be raised in the Motion. (Uyeshima Decl., ¶ 6.) The Court finds LAUSD’s meet and confer effort to be satisfactory.

B. Motion to Strike

LAUSD seeks to strike portions of the SAC referring to the Child Abuse and Neglect Reporting Act (“CANRA”) and Education Code section 44691 as imposing mandatory duties on LAUSD. LAUSD contends that they are improper because neither statute imposes a mandatory duty on a school district. (Mot., at pp. 9-10.)

The SAC alleges that LAUSD “failed to perform its mandatory duty under Penal Code Sections 11164-11174.3 and Educational Code and Cal. Educ. Code § 44691.” (SAC, ¶¶ 5, 7, 24, 37-38, 48.) The SAC alleges that two individuals in particular, Jacqueline

Lopez Castillo and Diana Moreno, had knowledge of the abuse of Plaintiff and failed to report it. (Id., ¶¶ 36.)

As a preliminary matter, Plaintiff contends that whether CANRA or Education Code section 44691 creates a mandatory duty is a merits determination that is not the proper subject of a motion to strike. The Court disagrees. The question of whether Plaintiff has asserted a proper statutory basis for liability bears on the issue of whether the pleading conforms to the law, which is a consideration expressly permitted by Code of Civil Procedure section 436. The Court thus finds that LAUSD's Motion seeks appropriate relief.

Under California's Government Claims

Act, public entities are immunized "from liability for injuries arising from its acts or omissions except as provided by statute." (*Whooley v. Tamalpais Union High School District* (N.D. Cal. 2019) 399 F.Supp.3d 986, 1000 [citing Gov. Code, § 815, subd. (a)]; see also *Williams v. Horvath* (1976) 16 Cal.3d 834, 838 [noting the Legislature's intent to "confine potential governmental liability to rigidly delineated circumstances"].)

Pursuant to section 815.6, a public entity, such as a school district, "is liable for an injury of that kind proximately caused by its failure to discharge [a mandatory statutory duty] unless the public entity establishes that it exercised reasonable diligence to discharge the duty."

"To construe a statute as imposing a mandatory duty on a public entity, 'the mandatory nature of the duty must be phrased in explicit and forceful language.' 'It is not enough that some statute contains mandatory language. In order to recover, plaintiffs have to show that there is some specific statutory mandate that was violated by the [public entity][.]" (*Guzman v. County of Monterey* (2009) 46 Cal.4th 887, 910-911, citations omitted [affirmatively imposing a duty and providing implementing guidelines]; see also *State Dept. of State Hospitals v. Super. Ct.* (2015) 61 Cal.4th 339, 348-349, citations omitted ["A mandatory duty is created only when an enactment requires an act that is clearly defined and not left to the public entity's discretion or judgment. ... When the enactment leaves implementation to an exercise of discretion, 'lend[ing] itself to a normative or qualitative debate over whether [the duty] was adequately fulfilled,' an alleged failure in implementation will not give rise to liability."].)

(1) CANRA Allegations

CANRA, codified at Penal Code sections

11164 et seq., requires mandated reporters to report known or suspected instances of child abuse or neglect to law enforcement agencies or county welfare departments. (Pen. Code, §§ 11165.9, 11166, subd. (a).) Under CANRA, only certain individuals are designated as mandated reporters of suspected abuse, including, inter alia: an employee, volunteer, or governing board member of a school or school district; an administrator of a day camp or youth center; a Head Start program teacher; and a public assistance worker. (Id., § 11165.7, subd. (a).) CANRA imposes no explicit reporting duty on school districts. (See *ibid.*) The Court accordingly agrees that CANRA may not give rise to entity liability under Government Code section 815.6. References to LAUSD's failure to report pursuant to CANRA are accordingly improper matter and are not drawn in conformity with the law.

The Motion is GRANTED as to these portions of the SAC, without leave to amend.

(2) Education Code Section 44691

Pursuant to Education Code section 44691, school districts must provide annual training to employees, volunteers, and other persons working on their behalf who are mandated reporters under CANRA. (Educ. Code, § 44691, subd. (c)(1)(A).) The annual training must use the online training module provided by the State Department of Social Services or an equivalent module developed specifically to meet the requirements of section 44691 and approved by the district's "risk pool joint powers authority or liability insurance provider." (Id., subd. (d).) The training "shall include information that failure to report an incident of known or reasonably suspected child abuse or neglect, as required by Section 11166 of the Penal Code, is a misdemeanor punishable by up to six months confinement in a county jail, or by a fine of one thousand dollars (\$1,000), or by both that imprisonment and fine." (Id., subd. (c)(1)(A).) School districts must also provide annual training on the prevention of abuse. (Id., subd. (c)(1)(b).) The foregoing training must be provided to school personnel hired during the course of the school year and to volunteers upon commencing volunteer services. (Id., subd. (c)(1)(C).)

The foregoing provisions unquestioningly impose duties on school districts. LAUSD contends that these obligations should not be considered mandatory duties within the meaning of Government Code section 815.6 because they do not specifically prescribe “how training must be conducted or what constitutes compliance,” permitting discretion in discharging the duty. (Mot., at p. 10.)

The Court disagrees. The statute clearly provides for: (1) the nature of training that must be completed (training regarding the mandatory duty to report under CANRA and the prevention of abuse, including information about the criminal penalties of failure to report); (2) the method by which training must be completed (using either the state training module or an equivalent module designed to comply with statutory requirements, submitted to the State Department of Education, and approved by the governing risk authority or liability insurer); and (3) the timeline for completion (annually and within the first six weeks of a person's employment or commencing volunteer services). (Educ. Code, § 44691, subds. (c)-(d).) These requirements leave little room for the exercise of judgment as to the content, implementation, or completion of CANRA training, delineating clear guidelines that provide a basis for determining non-compliance.

The Court accordingly finds that Education Code section 44691 provides a viable basis for LAUSD's liability for failure to discharge a mandatory duty. The Motion is therefore DENIED as to references to Education Code section 44691 and LAUSD's breach of mandatory duty for failure to train.

Based on the foregoing, the Court GRANTS the Motion IN PART, without leave to amend. The following portions of the SAC are stricken:

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Paragraph

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Paragraph

7, at page 3, line 11: “the Child Abuse and Neglect Reporting Act (“CANRA”)”

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Paragraph

7, at p. 3, lines 11-12: “Penal Code §§11164–11174.3 and”

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Paragraph

24

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Paragraph

36

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Paragraph

37, at page 8, line 24: “by CANRA” and “Cal. Penal Code § 1164-11174.3 [sic] and”

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Paragraph

38

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Paragraph

48, at page 11, line 2: “under Penal Code §§ 11164-11174.3 and”

CONCLUSION

The Court GRANTS IN PART Defendant Los Angeles Unified School District’s Motion to Strike, consistent with the foregoing ruling.

Moving party to give notice.